

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #09	CCRB Case #: 201509138	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/16/2015 11:55 PM	Location of Incident: Remsen Avenue between Avenue K and Avenue J	18 Mo. SOL 3/16/2017	Precinct: 69		
Date/Time CV Reported Thu, 10/15/2015 7:10 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/26/2015 2:32 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Daniel Dallemand	478	944480	069 PCT
2. POM Matthew Krauszer	24261	952950	069 PCT
3. POM Alexis Bruno	20005	952502	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ryan Courten	03855	948818	069 PCT
2. POM Nicklas Yardan	25155	946577	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Daniel Dallemand	Abuse: Sgt. Daniel Dallemand stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Alexis Bruno	Abuse: PO Alexis Bruno stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . POM Matthew Krauszer	Abuse: PO Matthew Krauszer stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Exonerated
D . SGT Daniel Dallemand	Abuse: Sgt. Daniel Dallemand frisked § 87(2)(b)	D . Substantiated
E . SGT Daniel Dallemand	Abuse: Sgt. Daniel Dallemand searched § 87(2)(b)	E . Unsubstantiated
F . SGT Daniel Dallemand	Abuse: Sgt. Daniel Dallemand questioned § 87(2)(b)	F . Exonerated
G . POM Matthew Krauszer	Abuse: PO Matthew Krauszer searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Unsubstantiated
H . POM Alexis Bruno	Abuse: PO Alexis Bruno searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Unsubstantiated
I . SGT Daniel Dallemand	Abuse: Sgt. Daniel Dallemand interfered with § 87(2)(b)'s recording of an incident.	I . Unsubstantiated
J . POM Alexis Bruno	Abuse: PO Alexis Bruno interfered with § 87(2)(b)'s recording of an incident.	J . Unsubstantiated
K . SGT Daniel Dallemand	Discourtesy: Sgt. Daniel Dallemand spoke discourteously to § 87(2)(b)	K . Unsubstantiated
L . SGT Daniel Dallemand	Discourtesy: Sgt. Daniel Dallemand acted rudely toward § 87(2)(b)	L . Unsubstantiated
M . SGT Daniel Dallemand	Abuse: Sgt. Daniel Dallemand refused to provide his name and shield number to § 87(2)(b)	M . Unsubstantiated
N . SGT Daniel Dallemand	Abuse: Sgt. Daniel Dallemand threatened to arrest § 87(2)(b)	N . Unsubstantiated

Case Summary

On the evening of September 16, 2015, § 87(2)(b) and his foster brother, § 87(2)(b) were driving to a Popeyes located in Brooklyn to purchase some food. § 87(2)(b) was driving his black BMW M-5, 2013, sedan. The car's windows were legally tinted. The car's registration was up to date, and all the lights were functioning properly.

While driving westbound on Avenue K, § 87(2)(b) observed a taxi cab driving slowly at the intersection of Remsen Avenue and Avenue K in Brooklyn. § 87(2)(b) looked over his left shoulder, and it appeared to him that there were two police officers inside of the car. § 87(2)(b) proceeded to turn right onto Remsen Avenue from Avenue K driving towards Avenue J, when the car turned on its police lights and sirens. § 87(2)(b) immediately pulled over, stopped, and rolled down the windows (**Allegations A, B and C**).

Sgt. Daniel Dallemand of the 69th Precinct approached § 87(2)(b)'s car and asked for his driver license and registration. § 87(2)(b) provided the documents, and Sgt. Dallemand then returned to his vehicle. At approximately 11:55 p.m., § 87(2)(b) began video recording the incident on his cell phone. A few minutes later, Sgt. Dallemand returned and asked § 87(2)(b) to step out of the car. § 87(2)(b) asked why he had to exit his car and Sgt. Dallemand informed § 87(2)(b) that the same BMW "fled on him" two days prior. § 87(2)(b) and § 87(2)(b) complied with Sgt. Dallemand's request and exited the car. When § 87(2)(b) exited the car, he saw two officers, identified via investigation as PO Alexis Bruno and PO Matthew Krauszer of the 69th Precinct, present at the scene. Sgt. Dallemand asked § 87(2)(b) to put his hands on the roof of § 87(2)(b)'s car. § 87(2)(b) alleged that Sgt. Dallemand then squeezed the front and back pockets of his pants, and the front pockets of § 87(2)(b)'s pullover hoodie (**Allegation D**). Sgt. Dallemand then allegedly went inside § 87(2)(b)'s front and back pants pockets, as well as the front pockets of his pullover hoodie (**Allegation E**). Sgt. Dallemand then allegedly asked § 87(2)(b) why his eyes were red, and if he had anything illegal inside the car (**Allegation F**). § 87(2)(b) replied that he had an eye condition and that he had nothing illegal inside the car.

Sgt. Dallemand then asked § 87(2)(b) to step to the back of his car and face Sgt. Dallemand. § 87(2)(b) and § 87(2)(b) walked to the back of § 87(2)(b)'s car. § 87(2)(b) turned away from the car and could not see what was going on behind him; however, § 87(2)(b) could hear that both of his car's rear doors were being opened. At some point, § 87(2)(b) turned around and saw PO Krauszer and PO Bruno leaning inside of his car (**Allegations G and H**).

While still at the rear of his car, § 87(2)(b) alleged that Sgt. Dallemand ordered § 87(2)(b) to, "put [his] phone down." § 87(2)(b) also alleged that PO Bruno also asked § 87(2)(b) to put his phone down. § 87(2)(b) alleged that PO Bruno and Sgt. Dallemand grabbed his arm and tried to pull away his phone (**Allegations I and J**).

§ 87(2)(b) alleged that Sgt. Dallemand cursed at him throughout the course of the incident. § 87(2)(b) told Sgt. Dallemand that his BMW cost over \$100,000 and asked him to be more careful with the car. Sgt. Dallemand allegedly replied, "I don't give a fuck! I don't give a fuck!" (**Allegation K**). Sgt. Dallemand then told § 87(2)(b) that he could go. § 87(2)(b) alleged that Sgt. Dallemand then threw § 87(2)(b)'s cell phone, driver license, and registration onto the roof of § 87(2)(b)'s car (**Allegation L**). § 87(2)(b) alleged that he asked Sgt. Dallemand for his name and shield number twice, and that Sgt. Dallemand refused to provide it to him (**Allegation M**). § 87(2)(b) alleged that Sgt. Dallemand also threatened to arrest § 87(2)(b) for not having identification with him (**Allegation N**). Neither § 87(2)(b) nor § 87(2)(b) were arrested or issued a summons during this incident.

§ 87(2)(b) provided the cell phone video recording he took to the investigation.



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Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) however, § 87(2)(b) refused to mediate § 87(2)(g)
- This report has been submitted pending a FOIL request filed on December 17, 2015, for any Notice of Claim filed in regard to the incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- Sgt. Daniel Dallemand has been a Member of Service for eight years, and has seven previous CCRB allegations that were made against him. The allegations have not been closed yet. In case #201507197, the complainant alleged that Sgt. Dallemand § 87(2)(b) searched their vehicle, refused to provide his name and shield number, § 87(2)(g)
- PO Alexis Bruno has been a Member of Service for three years, and has five previous CCRB allegations stemming from two separate complaints that were made against him. The allegations were closed as exonerated, unsubstantiated and victim unavailable.
- PO Matthew Krauszer has been a Member of Service for three years, and has no previous CCRB complaints filed against him.
- § 87(2)(b) has filed four previous CCRB complaints (Board Review 2).

Potential Issues

- § 87(2)(b) § 87(2)(b) provided an unsworn telephone statement but was ultimately uncooperative with the investigation (Board Review 4).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described Sgt. Daniel Dallemand as a black male, who stood approximately 6'0" tall, between 25 to 40-years-old, with an average build and dressed in plainclothes. After the incident, § 87(2)(b) went to the 69th Precinct station house and obtained Sgt. Dallemand's name and shield number from an unidentified officer (Board Review 1). According to his NYPD Photograph, Sgt. Dallemand is listed as a § 87(2)(b)-old black male, § 87(2)(b), with black hair and brown eyes (Board Review 5). Sgt. Dallemand acknowledged stopping, frisking and interacting with § 87(2)(b) and § 87(2)(b) § 87(2)(g)
- § 87(2)(b) described PO Matthew Krauszer as a white male dressed in plainclothes. PO Krauszer, who is listed as a white male, acknowledged stopping and interacting with § 87(2)(b) § 87(2)(g).

- § 87(2)(b) described PO Alexis Bruno as a short white male dressed in plainclothes. PO Bruno, who is listed as a white male who § 87(2)(b), acknowledged stopping and interacting with § 87(2)(b). PO Bruno also acknowledged asking § 87(2)(b) to stop recording the incident. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A –Abuse of Authority: Sgt. Daniel Dallemand stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation B—Allegation of Authority: PO Alexis Bruno stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegations C—Abuse of Authority: PO William Krauszer stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

On the evening of September 16, 2015, § 87(2)(b) and his § 87(2)(b) old foster brother, § 87(2)(b) were driving to a Popeyes located in Brooklyn to purchase some food. § 87(2)(b) was driving his black, 2013, M-5 BMW sedan, which had lightly tinted windows. § 87(2)(b) was sitting in the front passenger seat. The car's registration was up to date, and all the lights functioned properly. § 87(2)(b) was driving westbound on Avenue K, when he observed a taxi cab driving slowly at the intersection of Remsen Avenue and Avenue K in Brooklyn. § 87(2)(b) looked over his left shoulder, and it appeared to him that there were police officers, subsequently identified as Sgt. Daniel Dallemand, PO Alexis Bruno, and PO Matthew Krauszer inside the cab. § 87(2)(b) proceeded to turn right onto Remsen Avenue from Avenue K. § 87(2)(b) continued driving on Remsen Avenue towards Avenue J; however, before § 87(2)(b) could reach Avenue J, the cab turned on its police lights and sirens. § 87(2)(b) immediately pulled over and rolled down the windows (Board Review 1).

Sgt. Daniel Dallemand testified that on September 16, 2015, he was assigned as the Supervisor of the 69th Precinct Anti-Crime team. Sgt. Dallemand worked with PO Alexis Bruno and PO William Krauszer in an unmarked black Crown Victoria. PO Bruno was the driver of the vehicle, while Sgt. Dallemand was sitting in the front passenger seat, and PO Krauszer sat in the rear passenger seat. Sgt. Dallemand observed a black BMW sedan, license plate #§ 87(2)(b) driving on Remsen Avenue and Avenue L in Brooklyn. All of the car's windows and rear windshield were darkly tinted, and the front license plate was missing. The car was driving approximately 20 feet away from the officers. Sgt. Dallemand did not remember who made the determination to stop the car, and Sgt. Dallemand did not discuss anything about the car either with PO Bruno or PO Krauszer before the car was pulled over. Sgt. Dallemand did not remember at what point he noticed that the car was missing the front plate; however, he was certain that it was before the car was stopped (Board Review 7).

PO Krauszer testified that while driving on Remsen Avenue in Brooklyn, he, PO Bruno, and Sgt. Dallemund observed a black BMW sedan driving in the opposite direction. The car was missing the front license plate, and the front driver's side and passenger driver side windows were darkly tinted. PO Krauszer did not remember who made the determination to stop the car. PO Krauszer did not discuss anything about the car either with PO Bruno or Sgt. Dallemund before the car was pulled over. The officers made a U-turn and positioned their vehicle directly behind § 87(2)(b)'s car. The officers turned on the police lights and sirens, and the car pulled over. The car stop was made within a few seconds after the officers observed that the car had darkly tinted windows, and the front license plate was missing (Board Review 8).

PO Alexis Bruno testified that he did not remember where the officers were driving when they observed § 87(2)(b)'s car. PO Bruno did not remember who made the decision to stop the car, neither PO Bruno remembered why the car was stopped (Board Review 9).

Under People v. Vonthaden, 13 Misc.3d 408, 819 N.Y.S.2d 661 (2006), the police officer has “probable cause to stop the vehicle for an excessive window tint violation (see Vehicle and Traffic Law § 375) even though the officer had no special training in visually determining the amount of light transmitted through a window and did not have a ‘tint-meter’ with him at the time of the stop. Since the window tint was ‘sufficiently obvious’ based upon the officer’s credible testimony that the windows on defendant’s vehicle were darker than those on his vehicle, no special expertise or equipment was required to justify the stop of the vehicle” (Board Review 10).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations A, B, and C** be closed as **Exonerated**.

Allegation D—Sgt. Daniel Dallemund frisked § 87(2)(b)

Allegation E—Sgt. Daniel Dallemund searched § 87(2)(b)

§ 87(2)(b) stated that after he pulled over his car, Sgt. Daniel Dallemund approached his window and asked him for his license and registration. § 87(2)(b) provided the documents and Sgt. Dallemund returned to his car. At approximately 11:55 p.m., § 87(2)(b) began recording the incident on his cell phone. After a few minutes, Sgt. Dallemund returned and asked § 87(2)(b) to step out of the car. § 87(2)(b) asked Sgt. Dallemund why he had to exit his car. Sgt. Dallemund informed § 87(2)(b) that the same BMW, “fled on him” two days ago. § 87(2)(b) replied that this car could have not fled on him two days ago, and then exited the car. § 87(2)(b) was wearing a black pullover hoodie, pants, and flip-flops. Sgt. Dallemund asked § 87(2)(b) to turn around and to put his hands on the roof of his car. § 87(2)(b) complied, and alleged that immediately afterwards Sgt. Dallemund squeezed § 87(2)(b)'s front and back pants pockets and the front pockets of § 87(2)(b)'s pull over hoodie. § 87(2)(b) alleged that Sgt. Dallemund then went inside his front and back pants pockets, as well, as the front pockets of his pullover hoodie. § 87(2)(b) had loose money in the front and back pants pockets, and his wallet in the left pants pocket. Sgt. Dallemund did not remove anything from § 87(2)(b)'s pockets (Board Review 1).

Sgt. Dallemand testified that after the car was stopped, PO Krauszer approached the front driver side of the car, while Sgt. Dallemand approached from the front passenger side. Sgt. Dallemand noticed two males inside the car, identified as § 87(2)(b) and § 87(2)(b). § 87(2)(b) was the driver of the car, while § 87(2)(b) sat in the front passenger seat. § 87(2)(b) asked PO Krauszer, “Why the fuck did you pull me over?” PO Krauszer informed § 87(2)(b) about the darkly tinted windows, and said that the car was missing the front license plate. § 87(2)(b) replied that he lost the license plate recently, and that the tints were legal. PO Krauszer then asked the driver for his driver license and registration. PO Krauszer also asked § 87(2)(b) if he was drinking that night, because § 87(2)(b)’s eyes were red, and he was slurring while speaking to PO Krauszer. At that moment Sgt. Dallemand called PO Ryan Courten and PO Nicklas Yardan also of the 69th Precinct, and requested them to bring a field Breathalyzer to the location. § 87(2)(b) provided his driver license and registration to PO Krauszer. § 87(2)(b) was then asked to exit his car three to four times in order to perform a Breathalyzer test. Sgt. Dallemand did not remember who asked § 87(2)(b) to exit the car, but § 87(2)(b) refused to exit his car. Sgt. Dallemand then approached the front driver side door, and asked § 87(2)(b) to exit his car in order to perform the Breathalyzer test. § 87(2)(b) complied with Sgt. Dallemand’s request and exited the car. Sgt. Dallemand testified that he feared for his safety because § 87(2)(b) was “irate”, yelling and cursing at the officers. When § 87(2)(b) exited the car, Sgt. Dallemand observed a bulge in the front right pocket of § 87(2)(b)’s sweat pants. Sgt. Dallemand described the bulge as a “blunt object from three to five inches long.” Sgt. Dallemand could not see the object or describe it further. Sgt. Dallemand suspected that it could have been a knife; therefore, Sgt. Dallemand frisked § 87(2)(b)’s front right pocket, and felt that it was § 87(2)(b)’s phone. Sgt. Dallemand asked § 87(2)(b) if he had a cell phone inside his right front pocket, and § 87(2)(b) replied, “Yes.” Sgt. Dallemand did not frisk any other part of § 87(2)(b)’s clothing. Sgt. Dallemand did not go inside any of § 87(2)(b)’s pockets, nor did he remove anything from § 87(2)(b)’s pockets (Board Review 7).

PO Krauszer testified that after the car was stopped, he asked § 87(2)(b) for his driver license, registration, and insurance. § 87(2)(b) asked PO Krauszer why he was stopped. § 87(2)(b)’s eyes were red, and PO Krauszer smelled alcohol on § 87(2)(b)’s breath. PO Krauszer then asked § 87(2)(b) to exit his car. § 87(2)(b) became irritated and began moving his hands in front his chest. PO Krauszer explained to § 87(2)(b) that he needed to get out of the car in order to perform a Breathalyzer test. The field Breathalyzer was requested by Sgt. Dallemand; however, PO Krauszer did not know which officers responded to Sgt. Dallemand’s request. PO Krauszer asked § 87(2)(b) three times to exit the car; however, § 87(2)(b) refused to comply with PO Krauszer’s request. § 87(2)(b)’s raised voice, irate behavior, and assumption that § 87(2)(b) was intoxicated led PO Krauszer fear for his safety. Sgt. Dallemand then approached the driver’s side door, and asked § 87(2)(b) to step out of his car. § 87(2)(b) complied with Sgt. Dallemand’s request. PO Krauszer did not observe any bulges inside of § 87(2)(b)’s clothing when he exited the car. PO Krauszer did not suspect that § 87(2)(b) had any weapons on him. PO Krauszer did not see if Sgt. Dallemand, or any other officer, touched or frisked § 87(2)(b). PO Krauszer did not see if Sgt. Dallemand went inside any § 87(2)(b)’s pockets (Board Review 8).

PO Bruno testified that after the car was stopped, § 87(2)(b) became agitated, and did not want to get out of the car. PO Bruno then approached the driver’s side door. PO Bruno did not remember what § 87(2)(b) said to the officers. PO Bruno did not remember who asked § 87(2)(b) to get out of the car, or why § 87(2)(b) was asked to step out of his car. Sgt. Dallemand

approached the driver side door, and spoke to § 87(2)(b) before § 87(2)(b) exited the car. PO Bruno did not hear what Sgt. Dallemand and § 87(2)(b) said to one another. When § 87(2)(b) exited the car, PO Bruno noticed that § 87(2)(b)'s eyes were red. PO Bruno did not remember if PO Krauszer or Sgt. Dallemand asked § 87(2)(b) about his eyes being red. PO Bruno could not say with certainty that § 87(2)(b) was intoxicated, because PO Bruno was not standing close enough to § 87(2)(b) to be able to smell his breath, and a Breathalyzer test was not performed. When § 87(2)(b) exited the car, PO Bruno did not observe any bulges on § 87(2)(b). PO Bruno was not informed by either PO Krauszer or Sgt. Dallemand that § 87(2)(b) had a bulge on his person. PO Bruno saw Sgt. Dallemand frisk § 87(2)(b) over his outer clothing when § 87(2)(b) exited the car. PO Bruno did not remember where exactly Sgt. Dallemand frisked § 87(2)(b). PO Bruno did not remember if Sgt. Dallemand explained why he frisked § 87(2)(b). PO Bruno did not see if Sgt. Dallemand ever went inside or retrieve anything from § 87(2)(b)'s pockets at any point during the incident (Board Review 9).

According to People v. De Bour, 40 N.Y. 2d 2010 (1976), an officer may frisk and search someone if they have probable cause to believe that the person is armed and dangerous (Board Review 11).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

Allegation F—Abuse of Authority: Sgt. Daniel Dallemand questioned § 87(2)(b)

§ 87(2)(b) alleged that after being frisked and searched, Sgt. Dallemand asked him if he had anything illegal inside of his car. § 87(2)(b) replied that he had nothing illegal inside of his car. Sgt. Dallemand then asked § 87(2)(b) to step to the back of the car and face Sgt. Dallemand (Board Review 1).

Sgt. Dallemand testified that after § 87(2)(b) refused to exit his car, Sgt. Dallemand walked to the front driver side, and asked § 87(2)(b) if he had anything to drink that night because his eyes were glossy, his speech was slurred, and Sgt. Dallemand smelled alcohol on § 87(2)(b)'s breath. § 87(2)(b) responded that he was not drinking, and that he had contacts on, and an eye condition. Sgt. Dallemand denied asking § 87(2)(b) if he had anything illegal inside of his car (Board Review 7).

Sgt. Dallemand was shown the video recording that § 87(2)(b) took during his CCRB interview, and he recognized his voice in the recording. Sgt. Dallemand articulated that he was the officer who spoke to § 87(2)(b) when § 87(2)(b) began recording. The video recording

incident. PO Bruno did not see whether any other officers, who were present at the scene, opened the car doors, went inside the car, or opened any compartments inside the car.

Sgt. Dallemand did not see whether any officer opened any door to § 87(2)(b)'s car, or if any officers searched § 87(2)(b)'s car at any point during the incident (Board Review 7).

§ 87(2)(g)

It is therefore recommended that **Allegations G and H** be closed as **Unsubstantiated**.

Allegation I— Abuse of Authority: Sgt. Daniel Dallemand interfered with § 87(2)(b)'s recording of an incident.

Allegation J—Abuse of Authority: PO Alexis Bruno interfered with § 87(2)(b)'s recording of an incident.

§ 87(2)(b) alleged that while still at the rear of his car, Sgt. Dallemand ordered him to, “put [his] phone down.” § 87(2)(b) alleged that PO Bruno also asked him to put the phone down, and that by not complying § 87(2)(b) “[could] make the matter worse.” § 87(2)(b) refused to put his phone down or to turn off the recording. PO Bruno then grabbed his right arm and tried to pull the phone away from § 87(2)(b). When § 87(2)(b) took a few steps away from his car, at which point PO Bruno and Sgt. Dallemand then grabbed § 87(2)(b)'s right upper shoulder and tried to hold him from behind. § 87(2)(b) then released his phone. Sgt. Dallemand took possession of the phone and turned it off (Board Review 1).

Sgt. Dallemand testified that after he frisked § 87(2)(b), § 87(2)(b) took out his cell phone, and showed it to Sgt. Dallemand. Sgt. Dallemand then asked § 87(2)(b) to put his phone away fearing that § 87(2)(b) could throw his cell phone at him. Sgt. Dallemand told § 87(2)(b) that he did not need the phone at that particular moment, and that he could make a phone call after the incident was over. § 87(2)(b) then put his phone back inside his pocket. Sgt. Dallemand was not aware of whether § 87(2)(b) was recording the incident on his phone. Sgt. Dallemand denied grabbing § 87(2)(b)'s hand or trying to pull the phone away from him. Sgt. Dallemand did not hear if any other officer asked § 87(2)(b) to put his phone away, and did not see if any officer grabbed § 87(2)(b)'s hands or tried to pull the phone away from him (Board Review 7).

PO Bruno testified that he saw § 87(2)(b) holding his cell phone in his hand when he exited the car. PO Bruno knew that § 87(2)(b) was recording the incident. PO Bruno did not hear if Sgt. Dallemand asked § 87(2)(b) to put his phone away; however, PO Bruno asked § 87(2)(b) to put his phone away. PO Bruno explained that he does not like when, after conducting a car stop, a person has anything in their hand. PO Bruno asked § 87(2)(b) to put his phone away, because he feared that § 87(2)(b) could throw the phone at PO Bruno's face. PO Bruno did not tell § 87(2)(b) that he could not continue recording the incident, and § 87(2)(b) complied with PO Bruno's request by putting the phone inside the right front pocket of his pants. PO Bruno denied touching § 87(2)(b)'s phone during the incident, and denied trying to grab § 87(2)(b)'s phone. PO Bruno did not see if any other officer attempted to take § 87(2)(b)'s phone. After watching the video recording of this incident, PO Bruno acknowledged that he was the officer who told § 87(2)(b) “Put the phone down” (Board Review 15).



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PO Krauszer testified that he did not see if § 87(2)(b) was holding a cell phone in his hand, and was not aware that § 87(2)(b) was recording the incident. PO Krauszer did not hear PO Bruno or Sgt. Dallemand tell § 87(2)(b) to put his phone away. PO Krauszer did not see if other officers touched § 87(2)(b)'s phone at any point during the incident (Board Review 8).

PO Bruno acknowledged that he told § 87(2)(b) to, "put the phone down." PO Bruno also identified his voice on the video recording at 1:29 seconds of the recording where someone off camera said, "You going to record the whole thing? Put the phone down." Later, at 1:40 seconds of the video recording PO Bruno denied saying, "Turn the phone off... Turn the phone off." The recording of the incident does not show any officer grab, or attempted to take § 87(2)(b)'s cell phone away from him.

§ 87(2)(g)

It is therefore recommended **Allegations J and I** be closed as **Unsubstantiated**.

Allegation K—Discourtesy: Sgt. Daniel Dallemand spoke discourteously to § 87(2)(b)

Allegation L—Discourtesy: Sgt. Daniel Dallemand acted rudely toward § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Dallemand cursed at him throughout the course of the incident. § 87(2)(b) could not exactly say what Sgt. Dallemand told him; however, after § 87(2)(b) told Sgt. Dallemand that his BMW cost over \$100,000, Sgt. Dallemand allegedly replied, "I don't give a fuck! I don't give a fuck!" Sgt. Dallemand then told § 87(2)(b) that he could leave. § 87(2)(b) alleged that Sgt. Dallemand then threw § 87(2)(b)'s cell phone, driver's license, and registration onto the roof of § 87(2)(b)'s car (Board Review 1).

Sgt. Dallemand denied saying, "I don't give a fuck! I don't give a fuck." Sgt. Dallemand did not use any profanity during the incident, and did not hear any other officer use profanity during the incident. Sgt. Dallemand did not remember which officer returned § 87(2)(b)'s license and registration back to him, and he denied throwing § 87(2)(b)'s license and registration onto the roof of § 87(2)(b)'s car (Board Review 7).

PO Krauszer testified that he did not hear Sgt. Dallemand say, "I don't give a fuck! I don't give a fuck!" PO Krauszer did not use any profanity during the incident, and he did not hear Sgt. Dallemand or PO Bruno use any profanity during the incident. PO Krauszer did not remember whether he or Sgt. Dallemand had possession of § 87(2)(b)'s license, registration and insurance. PO Krauszer recalled that he asked § 87(2)(b) for the documents; however, he did not remember if § 87(2)(b) provided him with the documents, or gave them to Sgt. Dallemand. PO Krauszer did not return the documents to § 87(2)(b) neither did he remember whether Sgt. Dallemand was the one who returned the documents to § 87(2)(b). PO Krauszer did not see if Sgt. Dallemand threw the documents onto the roof of § 87(2)(b)'s car (Board Review 8).

PO Bruno did not hear Sgt. Dallemand say, "I don't give a fuck! I don't give a fuck!" PO Bruno did not use any profanity during the incident, and he did not hear Sgt. Dallemand or PO Krauszer use any profanity during the incident. PO Bruno did not remember who returned § 87(2)(b)'s license and registration to § 87(2)(b). PO Bruno did not see Sgt. Dallemand throw § 87(2)(b)'s license and registration onto the roof of § 87(2)(b)'s car (Board Review 9).

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations K and L** be closed as **Unsubstantiated**.

Allegation M—Abuse of Authority: Sgt. Daniel Dallemand refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that he asked for Sgt. Dallemand's name and shield number twice during the incident. Sgt. Dallemand ignored § 87(2)(b)'s request, and did not provide his name and shield number (Board Review 1).

Sgt. Dallemand testified that he did not hear § 87(2)(b) ever request his name and shield number during the incident. Sgt. Dallemand did not refuse to provide his name and shield number to § 87(2)(b).

PO Krauszer testified that § 87(2)(b) did not ask him or any other officer for their names and shield numbers during the incident.

PO Bruno testified that § 87(2)(b) did not ask him or any other officer for their names and shield numbers during the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation M** be closed as **Unsubstantiated**.

Allegation N—Abuse of Authority: Sgt. Dallemand threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Dallemand threatened to arrest § 87(2)(b) because § 87(2)(b) did not have any identification on him (Board Review 1).

Sgt. Dallemand testified that when PO Krauszer spoke to § 87(2)(b) he went to the front passenger side and spoke to the passenger, § 87(2)(b). Sgt. Dallemand asked § 87(2)(b) where they were coming from, and if they were drinking alcohol that night. § 87(2)(b) denied drinking; however, Sgt. Dallemand did not remember what § 87(2)(b) told him about in regards to what his and § 87(2)(b)'s whereabouts were that night. Sgt. Dallemand then asked § 87(2)(b) for his identification. § 87(2)(b) appeared to be calm, and provided Sgt. Dallemand with his identification. Sgt. Dallemand did not threaten to arrest § 87(2)(b). Sgt. Dallemand did not hear any other officer threaten to arrest § 87(2)(b). § 87(2)(b) never did anything that could have possibly led him to be arrested (Board Review 7).

PO Krauszer testified that he did not remember who interacted with § 87(2)(b). PO Krauszer did not know if § 87(2)(b) was asked for his identification, and he did not hear whether any officer threatened to arrest § 87(2)(b) (Board Review 8).

PO Bruno testified that he did not remember if there was anyone else inside the car besides § 87(2)(b) (Board Review 9).

§ 87(2)(g)

It is therefore recommended that **Allegation N** be closed as **Unsubstantiated**.

Squad: 9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date